

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harry Feigen	Team: Squad #04	CCRB Case #: 201503501	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 04/22/2015 9:00 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 10/22/2016	Precinct: 66
Date/Time CV Reported Mon, 04/27/2015 6:47 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 05/04/2015 12:33 PM

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POM Joel Acevedo	25988	945454	066 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sammy Kwan	23211	947146	066 PCT
2. POM Alden Lee	13277	947165	066 PCT
3. POM James Jaiman	06128	956769	066 PCT
4. POM Jason Alter	17720	952404	066 PCT
5. POM Joel Ramirez	23003	953294	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joel Acevedo	Discourtesy: PO Joel Acevedo spoke rudely about § 87(2)(b) [REDACTED]	A . Unsubstantiated

Case Summary

On April 27, 2015, § 87(2)(b) who is a non-witnessing complainant, filed this complaint with IAB by phone, generating IAB log number 15-11049.

On April 22, 2015, at approximately 9:00 p.m., § 87(2)(b) was in his home, which is located on § 87(2)(b) § 87(2)(b) in Brooklyn. § 87(2)(b)'s cousin and roommate, § 87(2)(b) arrived back at their home at that time as well, and was in the midst of a drug overdose. § 87(2)(b) called 911, and an ambulance arrived several minutes later.

Six uniformed police officers arrived to accompany the ambulance. § 87(2)(b) waited in the hallway outside of his apartment with the officers while the EMTs worked on § 87(2)(b). During that time, PO Joel Acevedo started joking around with the other officers, and stated, "You know what I do with junkies? I grab them by the head and slap them around. I'll kick them in the balls" (**Allegation A**). § 87(2)(b) was eventually brought out to an ambulance, removed to § 87(2)(b), and the officers left without further incident.

Mediation, Criminal, and Civil Histories

- § 87(2)(b) rejected mediation.
- § 87(2)(b)
- A notice of claim request was submitted to the Comptroller's office on June 29, 2015. It will be added to the case file upon its receipt.

Civilian and Officer CCRB Histories

- This is the first CCRB Complaint for both § 87(2)(b) and § 87(2)(b)
- PO Acevedo has been a member of service for seven years. There are no substantiated allegations on his record, § 87(2)(g)

Findings and Recommendations

Explanation of Subject Officer Identification

It is undisputed that PO Acevedo was one of the officers who responded to § 87(2)(b) to assist the ambulance call, § 87(2)(g). § 87(2)(b) described the subject officer as a 6'0" tall, slim Hispanic male in his early 30s with dark hair. PO Acevedo is a § 87(2)(b) Hispanic male with black hair, who was § 87(2)(b) old on the date of the incident (01 Board Review). There was only one other Hispanic male officer who responded to the location: PO Joel Ramirez. He is a black Hispanic male, however (02 Board Review). Given that § 87(2)(b) stated that there was one Hispanic officer, one black officer, two Asian officers, and two white officers at the location; and that of the four other officers who

responded, two are clearly white males (03 Board Review, 04 Board Review) and two are clearly Asian males (05 Board Review, 06 Board Review), § 87(2)(g)

Allegation A: PO Joel Acevedo spoke rudely about § 87(2)(b)

§ 87(2)(b) alleged that, while he was waiting in the hallway outside of his apartment with the six police officers as the EMTs worked on § 87(2)(b) PO Acevedo stated to no one in particular, “You know what I do with junkies? I grab them by the head and slap them around. I’ll kick them in the balls” (07 Board Review).

PO Acevedo did not recall § 87(2)(b) being at the location, and he did he not recall anything he specifically said to any of the officers while they were waiting for the EMTs to treat § 87(2)(b). He denied making the alleged rude statement or any similar statements at any point during the incident (08 Board Review). PO Jaiman (09 Board Review), PO Kwan (10 Board Review), and PO Lee (11 Board Review) all denied hearing PO Acevedo make the alleged statement as well. The EMTs who responded to the incident were not within hearing range of PO Acevedo at the time he allegedly made the rude statement.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 4

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date